

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-09

TZ SSE Buyer, LLC, Complainant v. COSCO Shipping Lines Co., LTD, Respondent

COMPLAINANTS' RENEWED MOTION FOR CONFIDENTIAL TREATMENT

Complainant TZ SSE Buyer, LLC (“Complainant”) hereby renews its request, pursuant to 46 C.F.R. §§ 502.69 and 502.5(b), and the February 28, 2024 Initial Order in this proceeding (“Initial Order”), for confidential treatment of Complainant’s Opening Brief in Support of its Claims Against COSCO Shipping Lines Co. Ltd. (“Opening Brief”), Complainant’s Proposed Findings of Fact (“CPFF”), and Complainant’s Appendix to its Opening Brief and Proposed Findings of Fact (“Appendix”).

This renewed motion reflects additional confidentiality designations recently provided by Respondent following Complainant’s initial submission. Complainant is therefore re-filing this request to ensure that all of Respondent’s asserted designations are properly accounted for.

Pursuant to 46 C.F.R. § 502.5(b) a motion for confidential treatment should specify the information in a filing for which protection is sought and show good cause by demonstrating “the information is a trade secret or other confidential research, development, or commercial information pursuant to § 502.141(j)(1)(vii).” 46 C.F.R. § 502.5(b). In this instance, Complainant’s Opening Brief, CPFF, and Appendix do not contain any information that Complainant seeks to keep confidential. However, these submissions include materials that Respondent, COSCO Shipping Lines Co. Ltd. (“Respondent”), has designated as confidential pursuant to the Protective Order entered in this proceeding.

Accordingly, prior to filing, Complainant shared with Respondent the exhibits containing Respondent's discovery materials, as well as Complainant's Opening Brief and CPFF. Complainant requested that Respondent identify and clearly mark any information it seeks to protect and provide the basis for each confidentiality designation, consistent with the format set forth in the Initial Order.

In response, on June 18, 2025, Respondent provided a Confidential Documents Table identifying certain exhibits it considers confidential, along with its stated reasons for each designation. Most recently, on June 20, 2025, Respondent submitted a second Confidential Documents Table identifying certain information in Complainant's Opening Brief and CPFF that it considers confidential, along with corresponding justifications. Both tables are attached to this Motion as **Exhibit A**.

As reflected in **Exhibit A**, Respondent has now identified certain content in Complainant's Opening Brief and CPFF that it considers confidential. Complainant has applied redactions in the public versions of those documents and included corresponding markings in the confidential versions, consistent with Respondent's designations. In addition, the Appendix and Exhibits contain materials previously designated as confidential by Respondent. The confidential version of Complainant's Appendix and Exhibits includes markings reflecting those designations, and the public version includes the corresponding redactions.

For the foregoing reasons, should the Presiding Officer concur with Respondent's confidentiality designations, Complainant respectfully requests that the identified information be afforded confidential treatment, and that the corresponding redactions in Complainant's public and confidential versions of the Opening Brief, CPFF, and Appendix be accepted as submitted.

Dated: June 20, 2025

Respectfully jointly submitted,

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CERTIFICATE OF SERVICE

I certify that on June 20, 2025, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502.

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EXHIBIT A

**24-09 TZ OPENING
BRIEF EXHIBITS
CONFIDENTIALITY
MARKINGS
SENT BY RESPONDENT
ON 6/18/2025**

C'S OPENING BRIEF EXHIBITS	DESCRIPTION	CONFIDENTIALITY DESCRIPTION
1. EXHIBIT 1 CX_000032-CX-000153	122 PAGES OF COSCO INVOICES	Confidential/AEO: 3 rd party information and banking information associated with named 3 rd parties
2. EXHIBIT 2 CX_001357-CX001385	TAKASE DEPOSITION TRANSCRIPT	Not confidential.
3. EXHIBIT 4 CX_001398-CX_001665	269 PAGES OF COSCO MBLs	All invoices are marked confidential. Contains third party information.
4. EXHIBIT 12 CX_002273-CX_002276	R'S EXCEL SPREADSHEET	Confidential: Contains commercially sensitive information.
5. EXHIBIT 13 CX_002278	R'S EXCEL WAIVED SHIPMENT SPREADSHEET	Confidential: Contains commercially sensitive information.
6. EXHIBIT 14 CX_002280-CX_002299	SUPPORTING DOCS FOR COSCO WAIVED SHIPMENT SPREADSHEET & 3 COSCO INV'S + COSCO PERDIEM EMAIL CORRESPONDENCE	Confidential: Third party information (3x invoices) & internal COSCO communications.
7. EXHIBIT 15 CX_002301-CX_002329	COSCO FREE TIME/DETENTION TARIFF + FREE TIME DEMURRAGE TARIFF	Not confidential.

8. EXHIBIT 16 CX_002338-CX_002339	RESPONDENT'S SUPPLEMENTAL RESPONSES TO DISCOVERY REQUESTS	Confidential: Responses to Respondent's Supplemental Responses to Discovery Requests #10 and #11 contain commercially sensitive information.
9. EXHIBIT 18 CX_002411-CX_002424	DEPO TRANSCRIPT OF PAUL KENT	Not confidential.
10. EXHIBIT 19 CX_002426-CX_002432	COSCO FRESHDESK TICKETS	Confidential: Contains commercially sensitive information.

**24-09 CONFIDENTIAL
DOCUMENTS TABLE
JFLS
SENT BY RESPONDENT
ON 6/20/2025**

Document Bates Number	DESCRIPTION	Classification Requested for	Reason(s) for Confidential Designation	Location in Complainant's Brief
CX_002182-002197	Internal COSCO communications	Confidential	Commercially sensitive information	CPFF 47; Brief pp. 17-18, 25, 28
CX_002272-002276	Respondent's Excel Spreadsheet	Confidential	Commercially sensitive information	CPFFs 52, 53; Brief pp. 9-10, 27
CX_000032-000153	COSCO invoices	Confidential	Commercially sensitive information	CPFFs 52, 53, 69, 70, 74; Brief pp. 20, 27-28
CX_002277-002278	Respondent's Excel Waived Shipment Spreadsheet	Confidential	Commercially sensitive information	CPFFs 55, 56; Brief pp. 26, 27, 28
CX_002425-002432	COSCO Freshdesk Tickets	Confidential	Commercially sensitive information	Brief p. 21